

Tenancy Policy

Aster Group is the overarching brand name of Aster Group Ltd and all of its subsidiaries.

1 Scope

- 1.1 Aster Group offers a range of tenancies. This policy applies to all customers of Aster Group except Shared Ownership customers.
- 1.2 Our tenancy agreements and terms of occupation comply with the Regulator of Social Housing Tenancy Standard 2024 and all applicable statutory and legal requirements.
- 1.3 We will offer a tenancy to customers who can provide evidence that they have UK citizenship or have the required immigration status with recourse to public funds and are eligible to live in the UK.
- 1.4 If there is any variance between this policy and individual tenancy agreements, the individual tenancy agreement takes precedence.

2 Policy Statement

- 2.1 We grant tenancies which are fair and compatible with the needs of individual households, the sustainability of the community, and the efficient use of our housing stock.
- 2.2 We will provide customers with appropriate advice and information regarding their tenancy.
- 2.3 We have clear criteria for using and offering different types of tenancy, and for deciding what happens when a tenancy comes to an end. If a customer wishes to end their tenancy, they will need to let us know in writing, giving at least four weeks' notice, in line with the requirements of their tenancy agreement. We will provide customers with tenancy advice.
- 2.4 All customers (except Shared Ownership customers) will be provided with a written tenancy or licence agreement when moving into their home. This outlines the responsibilities of both Aster and our customers.
- 2.5 We do not offer tenancies for more than two tenants, unrelated occupants not in a relationship, or intergenerational families such as parent and child tenancies.
- 2.6 The types of tenures we offer are as follows:
 - Assured tenancy
We will issue an assured tenancy to any new or existing customer who have been assessed under the terms of the Lettings Policy or by agreement with the Local Authority.
 - Assured shorthold tenancy
We will issue assured shorthold tenancies to customers that are moving into intermediate rent accommodation, and for short-term accommodation to help our Local Authority partners prevent homelessness.

Assured and starter tenancies will be offered at either a social or affordable rent. A mixture of social and affordable rents will be applied on new builds delivered under the terms of Homes England Delivery Framework Agreement, along with an agreed percentage of re-lets.

Assured Shorthold Tenancies will be offered to our customers in Specialist Supported Accommodation. These will be for a period of 6 months and customers have the right to remain at the property until such time as the tenancy is brought to an end.

Such tenancies enable customers to live in accommodation where the support provision is linked to their home for living independently. Under this agreement, customers have exclusive occupancy of one bedroom and shared occupancy of communal facilities.

- Intermediate and Market Rent accommodation

An Assured Shorthold Tenancy: will be granted due to the non-secure nature of these tenures. This will be for a period of 6 months and after that time will continue until such time as it is brought to end, either by the customer or by Aster.

- Starter tenancy

We may issue a starter tenancy for customers with a history of rent arrears, anti-social behaviour, or customers who don't have a record of a tenancy. We can also issue starter tenancies for supported housing. Unless action is taken to end the tenancy, this will become an assured tenancy after 12 or 18 months.

- Licences

We will issue a licence for 16/17-year-olds which rolls into a starter tenancy upon them reaching the age of 18, this is because under 18's are not legally able to hold an interest in land. In certain circumstances, when deemed reasonable to do so, we will offer a 12-week licence for over 18's that rolls into a starter tenancy. We also offer licences where appropriate for short term accommodation.

- Licences (Care Homes)

For all registered care homes, licences will be issued as standard practice. In accordance with the CQC registration, licences will be issued in the name of the housing provider.

- Licences (Supported Housing)

We will award a Licence where the resident shares facilities and does not have exclusive use of the property. Such licences are used in supported housing schemes, where the support provision is linked to the accommodation and both are intended to be for a time limited period to enable customers to move on, discourage dependence whilst enabling support to as many people as possible.

- Emergency Temporary Re-housing (decant)

Where it is necessary to decant a customer from their home to enable emergency works to be carried out, a temporary licence will be used in these circumstances

2.7 Fixed Term Tenancies (Enham Trust only)

We are no longer offering new fixed term tenancies. There may be exceptional circumstances where a shorter fixed term period was issued, for a period of between two years and no longer than a five-year period and in these circumstances the probationary period does not apply. A review will be carried out 12 months before the end of the fixed term. The household

circumstances will be considered in relation to their continued suitability for that property and one of the following actions will be taken: -

- At the end of the 2–5-year fixed term tenancy, we will offer the customer an assured tenancy agreement providing there are no tenancy concerns.
- The tenancy may continue as a rolling periodic tenancy where there are any tenancy breaches.
- If a customer's situation is such that they could access alternative accommodation elsewhere, we will not normally grant a new tenancy. Instead, we will offer advice and assistance and refer the customer to the local authority.

- 2.8 We will support customers to achieve a mutual exchange in line with our Mutual Exchanges Procedure. We will allow assignments and enable successions in line with our Assignments Procedure and Tenancy Succession Procedure.
- 2.9 We will work with and refer customers to partner agencies in providing specialist advice and support around money and debt advice, access to benefits, care services etc to ensure tenancy sustainability.
- 2.10 Eviction is the option of last resort. We will only apply for court proceedings when all other options have been exhausted.
- 2.11 The Prevention of Social Housing Fraud Act 2013 was introduced to ensure that social housing is only used for those who need it. We will investigate reports of fraud from neighbours and other agencies and work closely with local authority partners and other agencies to tackle this.
- 2.12 We are committed to tackling all types of housing & tenancy fraud and will use various methods including but not limited to the NAFN (National Anti-Fraud Network), and we may subscribe to or use various agencies to achieve our aim. Our aim is to reduce and eradicate all social housing fraud that affects our business be it financial or administrative when managing our homes and other assets.
- 2.13 Action may be taken if there has been a breach of the tenancy agreement where it is reasonable and proportionate to do so. We will only terminate a tenancy and take possession action after all other alternatives have been explored.
- 2.14 If a customer passes away, we may accept a notice to end the tenancy from a next of kin and will work with them to return the property to Aster or investigate a succession request if the tenancy or circumstances allow this.
- 2.15 We will review tenancy agreements in line with legislation and ombudsman learning. Changes will be considered in line with legal obligation.

3 Monitoring and Review

- 3.1 In reviewing this Tenancy Policy, we consulted with involved customers who have expressed an interest in giving us their views on customer service policies, as well as colleagues who are involved in the lettings and management of our homes.
- 3.2 Policy overview recordings will be supplied to relevant teams following implementation of this policy to ensure the content and responsibilities are understood.

- 3.3 Lettings Managers will complete a rolling 10% audit on all affordable rent tenancies issued.
- 3.4 Neighbourhood Officers will complete monthly Tenancy Checks.
- 3.5 We have a data dashboard to assist in operational delivery ensuring compliance with the procedures that underpin our policy.
- 3.6 The effectiveness of this policy will be continuously monitored, and the embedding of the policy scrutinised after 12 months by the *Customer Services Operational Leadership Team*
- 3.7 The policy will be reviewed every 3 years unless business need, regulation or legislation prompts an early review.

4 Related Policies and Procedures

This Policy, in conjunction with associated documents outlined below, sets out Aster Group's approach to meeting the requirements outlined by the RSH Tenancy Standard 2024, RSH Neighbourhood & Community Standard 2025, Safety & Quality Standard 2025 and Transparency, Influence and Accountability Standard 2025.

Documents available to Aster Group colleagues and in the public domain

- 4.1 Active Disposal Policy – Tenanted Homes
- 4.2 ASB Policy
- 4.3 Complaints Policy
- 4.4 Diversity and Inclusion Policy
- 4.5 Income Management Policy
- 4.6 Lettings Policy
- 4.7 Rent and Other Charges Policy
- 4.8 Safeguarding Adults at Risk Policy
- 4.9 Safeguarding Children Policy
- 4.10 Section 20 Policy
- 4.11 Temporary Re-Housing (Decant) Policy
- 4.12 Vulnerability Policy

Documents available to Aster Group colleagues only

- 4.13 Abandoned Property Procedure
- 4.14 ASB Procedure
- 4.15 Eviction Procedure
- 4.16 Financial Wellbeing Service Procedure
- 4.17 Intermediate Rent Properties Procedure
- 4.18 Lettings Procedure
- 4.19 MAPPA and High-risk assessment guidance
- 4.20 Mutual Exchange Procedure
- 4.21 Safeguarding Children & Adults Procedure
- 4.22 Sensitive Lets Procedure

- 4.23 Starter Tenancy Procedure
- 4.24 Succession Procedure
- 4.25 Temporary Re-Housing (Decant) Procedure
- 4.26 Tenancy Assignment Procedure
- 4.27 Tenancy Checks Procedure
- 4.28 Tenancy Management – Under 18's Licenses
- 4.29 Under- Occupancy and Overcrowding Guidance

5 Governance			
Effective From:	23/04/2025	Expires:	22/04/2028
Policy Owner:	Regional Operations Director		
Policy Author:	Policy and Assurance Manager		
Approved by:	<i>Customer Services Operational Leadership Team</i>		
Scheme of Delegation Reference:	R055	Version Number:	V4.01

Aster Group is our overarching company brand and comprises the following companies and charitable entities. Aster Group Limited, Aster Communities, Aster Treasury plc, Synergy Housing Limited, East Boro Housing Trust Limited, Central and Cecil Housing Trust, Enham Trust, 55 London, Aster Foundation, Aster Living, Aster 3 Limited, Aster Homes Limited, Aster LD Limited, Aster Property Limited, Aster Solar Limited, Silbury Housing Holdings Limited, Silbury Housing Limited, Central & Cecil Innovations Limited, and Central & Cecil Construction Services Limited.